

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/01/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0005504

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: SUSAN DAVIA

vs.

DEFENDANT: MAJIC PRODUCTS INC.,
ET AL

NATURE OF PROCEEDINGS: MOTION – ENTRY OF JUDGMENT

RULING

Plaintiff's unopposed motion to approve the Proposition 65 settlement and enter judgment as to Defendants Majic Products, Inc., Guzman Enterprises, Inc. and Concept Communications Company is **GRANTED**. (Code Civ. Proc., § 664.6.)

Discussion

The proposed settlement agreement and consent judgment contains a provision whereby the parties stipulate that this Court shall have jurisdiction to enforce the settlement pursuant to Code of Civil Procedure section 664.6. Under section 664.6, the court is authorized to approve or disapprove a settlement agreement, but not to modify its terms. (*Leeman v. Adams Extract & Spice, LLC* (2015) 236 Cal.App.4th 1367, 1375.)

California Health and Safety Code section 25249.7(f)(4) requires judicial approval of the settlement of a Proposition 65 action between private parties. The court may not grant approval unless it finds that all the statutory requirements have been met. (*Consumer Defense Group v. Rental Housing Industry Members* (2006) 137 Cal.App.4th 1185, 1207.) As set forth in the statute:

If there is a settlement of an action brought by a person in the public interest under subdivision (d), the plaintiff shall submit the settlement other than a voluntary dismissal in which no consideration is received from the defendant, to the court for approval upon noticed motion, and the court may approve the settlement only if the court makes all of the following findings:

(A) The warning that is required by the settlement complies with this chapter.

(B) The award of attorney's fees is reasonable under California law.

(C) The penalty amount is reasonable based on the criteria set forth in paragraph (2) of subdivision (b).

(Health and Saf. Code § 25249.7(f)(4).)

The Court has reviewed the settlement terms and proposed consent judgment. After proper notice, no objections have been filed. As to factor (A), the court has reviewed the moving papers and finds that the proposed warnings are in reasonable compliance with the requirements of Proposition 65. As to (C), the penalty of \$2,000 is reasonable under the criteria of the statute. With regards to factor (B), the court finds that there is sufficient information to determine that the requested fees and costs in the amount of \$40,000 are reasonable. The amount of fees requested represents a reduction to Plaintiff's documented lodestar calculation.

Accordingly, the settlement is approved and the Court will enter the consent judgment.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/01/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0009002

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: LAURIE MARTIN

vs.

DEFENDANT: ERIC GORDON, ET AL

NATURE OF PROCEEDINGS: MOTION – ADMISSIONS – DISCOVERY FACILITATOR PROGRAM

RULING

The request to deem matters admitted is moot but the request for sanctions is **granted in the amount of \$500**. Plaintiff shall pay counsel for Defendant Kunkle this amount within twenty (20) days of this Order.

Discussion

According to her declaration in opposition to the motion, Plaintiff served verified responses to Defendant James Kunkle's requests for admission on June 9, 2026. There is no information before the Court indicating that these responses were not in substantial compliance with Code of Civil Procedure section 2033.220. Accordingly, based on this representation, the motion to deem the requests admitted is denied as moot. (See Code Civ. Proc., § 2033.280, subd. (c).) It is mandatory under the statute that the Court impose a monetary sanction on the party whose failure to serve a timely response to requests for admission necessitated the filing of the motion. (*Id.*) The failure in this case was not particularly egregious, as Plaintiff did attempt to obtain an extension of time to respond. Therefore, considering all the circumstances, the Court will impose **a monetary sanction of \$500** to offset the cost of drafting and filing the motion. Plaintiff shall pay counsel for Defendant Kunkle this amount within twenty (20) days of this Order.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.